

Manju vs The Oriental Bank Of Commerce on 5 March, 2025

IN THE COURT OF CIVIL JUDGE-01, WEST, TIS HAZARI
COURTS, DELHI

Presided over by- Sh. Vikas Madaan, DJS

CS SCJ No. 1673/19
CNR DLWT 030031072019

Date of institution of suit	:	31.10.2019
Date of reservation of Judgment	:	11.12.2024
Date of pronouncement of Judgment	:	05.03.2025

Smt. Manju
W/o Late Sh. Balram
R/o B-572, Jawalपुरi
Delhi.

.....Plaintiff

Vs.

Punjab National Bank (OBC)
Through its General Manager
PF/Pension Department, Corporate Office
Plot No. 5, Second Floor, Institutional Area
Sector-32, Gurgaon
Haryana-122001.

..... Defendant

Argued by

Ld. counsel for the plaintiff : Sh. Hari Shanker Pandey

Ld. counsel for the defendant : Sh. Rajat Arora

SUIT FOR DECLARATION, PERMANENT AND
MANDATORY INJUNCTION

JUDGMENT

A FACTUAL MATRIX

1. Brief facts of the present case as per plaint are

(i) that the plaintiff is legally wedded wife of Sh. Balram who Digitally signed by VIKAS VIKAS MADAAN MADAAN Date:

CS SCJ No.1673/19 Manju Vs. Oriental Bank of Commerce 1/9 2025.03.05 16:55:47 +0530 was working with defendant bank at Patti Branch, Tehsil Patii, Distt. Tarantaran, Punjab vide his PF No. 22845, applicant ID ARR20160000182 and File No. 1996, retired on 28.02.2013 as cashier.

(ii) that said Sh. Balram died on 01.07.2017. That after his retirement, he was getting his pension but after his death, the said pension which was ought to be paid to his legal heirs including plaintiff is not being paid to her. After the death of Sh. Balram, the plaintiff visited the defendant bank situated at Karol Bagh several times, but she was advised to approach the bank situated at Gurugram, Haryana but all in vain, rather, she was refused to get the family pension of her husband despite best efforts made by her.

(iii) that the plaintiff wrote a letter either to Karol Bagh Branch or to the Branch situated at Gurugram but all the times on her approach, she was advised to get the declaration from the Court itself.

(iv) that the marriage of plaintiff was solemnized with Sh.

Balram in society and plaintiff has no proof of her marriage with Sh. Balram except the affidavit dated 03.05.2003 sworn in by the plaintiff as well as by her husband wherein it has been categorically mentioned that both the parties have married with each other dated 12.03.2001, after the death of the previous husband and wife of both the parties. The plaintiff is having the documents issued from Govt. i.e. Aadhar Card and Election Commission ID and Ration Card wherein the name of husband of the plaintiff is written as Balram.

(v) that despite the production of documents issued by Govt. and the account which was opened during the life time of said Sh. Balram with the defendant bank, the defendant is not recognizing the plaintiff as wife of said Sh. Balram. That on 07.02.2018, plaintiff was handed over a form regarding giving information for granting of family pension by defendant but after filling the said form, the plaintiff was declined the family pension by the defendant. Digitally signed by VIKAS VIKAS MADAAN MADAAN Date:

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(vi) that defendant has ignored the fact that during the life time of said Balram, an account vide no. 00122031000832 was opened by him and the plaintiff was made/recognized as nominee of the deceased Balram which was opened on 24.07.2013 with Punjab National Bank, Karol Bagh Branch, Delhi, the branch of defendant.

(vii) that the plaintiff was married with Sh. Balram dated 12.03.2001 and to fortify the said fact the plaintiff and her husband executed an affidavit to the effect that they

are married couple and have already solemnized their marriage according to the customs and ceremonies prevalent in their society.

(viii) that the plaintiff is legally wedded wife of Sh. Balram and after his death, the plaintiff must have been paid the family pension but she has been denied and deprived of the said family pension only due to the arbitrary behaviour of the defendant bank and the said family pension is withheld by the defendant from 01.07.2017 till date.

(ix) That a legal notice dated 06.08.2019 was served upon defendant but of no avail, hence the present suit is filed.

(ix) Prayer is made as under -

(a) The plaintiff is declared legally wedded wife of Late Sh. Balram, S/o Sh. Bir Bahadur on the basis of marriage solemnized with the plaintiff according to the customs and ceremonies prevalent in the society.

(b) The defendant be directed to release the family pension to the plaintiff being legally wedded wife of Late Balram, S/o Sh. Bir Bahadur, employee of the defendant bank.

(c) The defendant bank be restrained from releasing the family pension of Late Balram S/o Sh. Bir Bahadur, employee of the defendant bank to any other person except the plaintiff.

(d) Any other relief.

2. Written statement has been filed on behalf of defendant wherein it is stated-

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(i) that Sh. Balram Rai had superannuated from bank in February, 2013 and later expired on 01.07.2017.

(ii) that before his death, Sh. Balram Rai had given an affidavit to the bank alongwith the authority for commutation of pension and monthly pension for recovery the bank's dues, if any. That in this affidavit the deceased Sh. Balram Rai had specifically mentioned that since death of his wife Smt. Maya Devi on 10.03.1997 he has not been remarried thereafter and none of his children are eligible for family pension.

(iii) that since the facts and averments made in the plaint are false and misleading, as per the records, the present suit is liable to be dismissed. That no relief qua the family pension can be granted in favour of plaintiff as has been prayed for.

That the plaintiff bank has no record of the plaintiff being the wife of deceased Sh. Balram Rai.

(iv) that the plaintiff is not the legal heir of late Sh. Balram Rai. The affidavit of Late Sh. Balram Rai disproves the averments made.

(v) that merely opening an account with the plaintiff as the nominee would not establish the right of the plaintiff.

(vi) that as per the records of bank, Smt. Maya Devi, wife of Sh. Balram Rai died on 10.03.1997.

In rest of the written statement the averments made in the plaint are denied and prayer is made for dismissal of suit.

3. Replication to the W.S has been filed by plaintiff wherein the contentions raised in the written statement are denied and averments made in the plaint are reiterated.

B. ISSUES

4. Vide Order dated 07.04.2022 following issues were framed :

1. Whether the plaintiff is entitled to decree of declaration thereby declaring plaintiff as legally wedded wife of Late Sh.

Balram, S/o Sh. Bir Bahadur ? OPP Digitally signed by VIKAS VIKAS MADAAN CS SCJ No.1673/19 Manju Vs. Oriental Bank of Commerce 4/9 MADAAN Date:

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2. Whether the plaintiff is entitled to decree of mandatory injunction thereby directing the defendant to release the family pension to the plaintiff ? OPP

3. Whether the plaintiff is entitled to a decree of permanent injunction thereby restraining the defendant bank from releasing family pension of Late Sh. Balram to any other person except the plaintiff ? OPP

4. Whether the plaintiff is not entitled to family pension of Late Sh. Balram Rai in view of affidavit given by late Sh.

Balram Rai dated 17.05.2013 ? OPD

5. Relief.

C. PLAINTIFF'S EVIDENCE

5. In order to prove his case plaintiff has examined herself as PW-1 and has tendered in evidence his duly sworn in affidavit. Same is Ex. PW 1/A and has relied upon following documents :

Sr. Details of documents Exhibits No. 1 Copy of aadhar card Ex. PW 1/1 (OSR)

2. Copy of election I card Ex. PW 1/2 (OSR)

3. Affidavit dated 02.05.2003 of Ex. PW 1/3 (OSR) Sh. Balram Rai

4. Affidavit dated 02.05.2003 of Ex. PW 1/4 (OSR) PW-1

5. Copy of application dated Mark A 07.02.2018 mentioning the details of family pension is de exhibited (being exhibit in affidavit as Ex. PW 1/5)

6. Copy of death certificate of Ex. PW 1/6 (OSR) Balram Rai

7. Copy of joint photograph of Mark B Balram Rai & PW-1 is deexhibited (being exhibit in Digitally signed by VIKAS VIKAS MADAAN MADAAN Date:

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+0530 affidavit as Ex. PW 1/7)

8. Copy of application to Bank Mark C Manager, Oriental Bank of Commerce is dexhibited (being exhibit in affidavit as Ex. PW 1/8)

9. Copy of ration card Ex. PW 1/9 (OSR)

10. Copy of pass book of A/c no. Ex. PW 1/10 (OSR) 00122031000832

11. Copy of pass book of A/c Ex. PW 1/11 (OSR) no.05832151013746

12. Copy of legal notice dated Ex. PW 1/12 06.08.2019

6. Plaintiff was cross-examined by counsel for defendant. Thereafter on 09.04.2024, on submission made by Ld. counsel for plaintiff regarding closing of PE, PE was closed and the matter was listed for DE.

D. DEFENSE EVIDENCE

7. In defendant evidence, defendant has examined its Senior Manager as DW-1 who has tendered in evidence his duly sworn in affidavit. Same is Ex. DW 1/A and has relied upon following document :

Sr. No. Details of documents Exhibits 1 Copy of affidavit by deceased Ex. DW 1/1
(OSR) Late Sh. Balram Rai

8. DW-1 has been cross-examined by counsel for plaintiff and thereafter vide separate statement made by counsel for defendant on 22.10.2024, DE was closed. Thereafter the matter was listed for final arguments. Digitally signed by VIKAS MADAAN VIKAS Date:

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9. I have heard final arguments advanced by Ld. counsel for parties and perused the record.

E. FINDINGS

1. Whether the plaintiff is entitled to decree of declaration thereby declaring plaintiff as legally wedded wife of Late Sh. Balram, S/o Sh. Bir Bahadur ? OPP

2. Whether the plaintiff is entitled to decree of mandatory injunction thereby directing the defendant to release the family pension to the plaintiff ? OPP

3. Whether the plaintiff is entitled to a decree of permanent injunction thereby restraining the defendant bank from releasing family pension of Late Sh. Balram to any other person except the plaintiff ? OPP All these issues are taken up together as the findings on these issues are based on common facts and evidences.

11.It is averred by the plaintiff that she was the legally wedded wife of Late Sh. Balram Rai and her marriage was solemnized with Sh. Balram Rai on 12.03.2001. It is further averred that the marriage was performed as per Hindu rituals. During her cross-examination she deposed that that none was present at the time of her marriage except pandit ji (priest). Similarly, it is further deposed that no seven round of fire was taken by us. She further deposed that she didn't remember about the date and year of death of Late Sh. Balram Rai.

12.The Hon'ble Apex Court in one of its recent Judgments titled as Dolly Rani Vs. Manish Kumar Chanchal, 2024 LiveLaw (Supreme Court) 334, has observed that :

"Where a Hindu marriage is not performed in accordance with the applicable rites or ceremonies Digitally signed by VIKAS VIKAS MADAAN MADAAN Date:

2025.03.05 CS SCJ No.1673/19 Manju Vs. Oriental Bank of Commerce 7/9 16:56:29 +0530 such as saptapadi when included,the marriage will not be construed as a Hindu marriage. In other words, for a valid marriage under the Act, the requisite ceremonies have to be performed and there must be proof of performance of the said ceremony when an issue/controversy arise. Unless the parties have undergone such ceremony, there would be no Hindu marriage according to Section 7 of the Act and a mere issuance of a certificate by an entity in the absence of the requisite ceremonies having been performed, would neither confirm any marital status to the parties nor establish a marriage under Hindu law."

13.The Hon'ble Apex Court has clarified the situation that for a marriage to be a valid marriage, all the rites and ceremonies shall have to be performed and there must have to be a proof of performance of the said ceremonies. In the present case, plaintiff has herself admitted that saptapadi ceremony was not taken place. Similarly plaintiff has failed to show that any other essential rites or ceremonies were performed during her alleged marriage with Late Sh. Balram Rai. Even the plaintiff has failed to prove that as per their customs, saptapadi was not a necessary ceremony to solemnize a marriage. Thus, the plaintiff has failed to prove that even on the basis of preponderance of probabilities that alleged marriage of Late Sh. Balram Rai was solemnized after the performance of all the essential ceremonies. Thus, the alleged marriage is not a valid marriage in the eyes of law. Thus, the plaintiff is not entitled to get the relief of declaration in her favour.

14.With regard to other reliefs as sought by the plaintiff, it is a trite law that when the main relief cannot be granted the consequential reliefs flowing from the main relief also cannot be granted. Since the plaintiff is not entitled for the relief of declaration, she is also not entitled to get the reliefs of injunctions in her favour. Digitally signed by VIKAS MADAAN VIKAS Date:

MADAAN 2025.03.05 16:56:37 CS SCJ No.1673/19 Manju Vs. Oriental Bank of Commerce 8/9 +0530 Accordingly, Issue no.1 to 3 stand decided against the plaintiff.

Whether the plaintiff is not entitled to family pension of Late Sh. Balram Rai in view of affidavit given by late Sh. Balram Rai dated 17.05.2013 ?

The onus to prove this issue was upon the defendant.

In light of above findings issue no.1 to 3, the Issue no. 4 stands decided against the plaintiff and in favour of defendant.

F RELIEF In view of aforementioned findings on all the issues, the suit of the plaintiff stands dismissed. No order as to costs.

Decree Sheet be prepared accordingly. File be consigned to Record Room after due compliance.

PRONOUNCED IN THE	VIKAS MADAAN	MADAAN Date: 2025.03.05 16:56:45 +0530
OPEN COURT TODAY 05.03.2025	(VIKAS MADAAN)	

Note: This judgment contains CIVIL JUDGE-01, WEST, TIS HAZARI COURTS, 09 pages and each page is DELHI signed by the under signed.

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